

STATE OF NEW YORK

9272--A

IN SENATE

February 20, 2026

Introduced by Sen. FERNANDEZ -- read twice and ordered printed, and when printed to be committed to the Committee on Alcoholism and Substance Use Disorders -- reported favorably from said committee and committed to the Committee on Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to expanding opioid overdose prevention measures in certain settings

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 922 of the education law, as amended by chapter 68
2 of the laws of 2016, is amended to read as follows:

3 § 922. Opioid overdose prevention. 1. School districts, public
4 libraries, boards of cooperative educational services, county vocational
5 education and extension boards, charter schools, and non-public elemen-
6 tary and secondary schools in this state [~~may~~] **shall** provide and main-
7 tain on-site in each instructional school facility or library, opioid
8 antagonists, as defined in section three thousand three hundred nine of
9 the public health law, in quantities and types deemed by the commission-
10 er, in consultation with the commissioner of health, to be adequate to
11 ensure ready and appropriate access for use during emergencies to any
12 student, individual on library premises or staff suspected of having
13 opioid overdose whether or not there is a previous history of opioid
14 abuse.

15 2. School districts, public libraries, boards of cooperative educa-
16 tional services, county vocational education and extension boards, char-
17 ter schools, and non-public elementary and secondary schools in this
18 state [~~may~~] **shall** elect to participate as an opioid antagonist recipient
19 and any person employed by any such entity that has elected to partic-
20 ipate may administer an opioid antagonist in the event of an emergency,
21 provided that such person shall have been trained by a program approved
22 under section three thousand three hundred nine of the public health
23 law. Any school district, public library, board of cooperative educa-
24 tional services, county vocational education and extension board, char-
25 ter school, and non-public elementary and secondary school that has

EXPLANATION--Matter in **italics** (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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1 employees trained in accordance with this section shall comply with the
2 requirements of section three thousand three hundred nine of the public
3 health law including, but not limited to, appropriate clinical over-
4 sight, record keeping and reporting. No person shall be required to
5 participate in the program and any participation by an individual shall
6 be voluntary.

7 3. (a) Upon the request of a school district, public library, board of
8 cooperative educational services, county vocational education and exten-
9 sion board, charter school, or non-public elementary and secondary
10 school in this state, the department of health shall provide, at no cost
11 to the recipient and in accordance with the standards, powers and
12 authorizations established by section three thousand three hundred nine
13 of the public health law, opioid antagonists in an amount sufficient for
14 the school district, public library, board of cooperative educational
15 services, county vocational education and extension board, charter
16 school, or non-public elementary and secondary school in this state to
17 be in compliance with this section.

18 (b) The commissioner of health shall establish a process by which a
19 school district, public library, board of cooperative educational
20 services, county vocational education and extension board, charter
21 school, or non-public elementary and secondary school in this state may
22 request such opioid antagonists from the department of health.

23 (c) Nothing in this subdivision shall be construed to limit the
24 authority of any such entity to otherwise acquire opioid antagonists
25 pursuant to section three thousand three hundred nine of the public
26 health law or to receive opioid antagonists through its participation as
27 a registered opioid overdose prevention program.

28 § 2. This act shall take effect on the first of July next succeeding
29 the date on which it shall have become a law. Effective immediately, the
30 addition, amendment and/or repeal of any rule or regulation necessary
31 for the implementation of this act on its effective date are authorized
32 to be made and completed on or before such effective date.